

**25STCV31329 25STCV31329**

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-26

Motion: PLAINTIFF JAMES SCOTT JR., BY AND THROUGH HIS SUCCESSOR-IN-INTEREST, JUANITA MILES' MOTIONS TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE; SPECIAL INTERROGATORIES, SET ONE AND REQUESTS FOR PRODUCTION, SET ONE AND REQUEST FOR SANCTIONS

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C733%2C08%2F26%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C733%2C08%2F26%2F2026)

Source SHA-256: 8d1ed300ad46a837e5170c5628595f8ec52583d1bf0c99a7d124c77d4f061f0e

Case Number: 25STCV31329 Hearing Date: August 26, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

JAMES

SCOTT JR., by and through his Successor-in-Interest, Juanita Miles; and  
JUANITA MILES, individually,

Plaintiffs,

vs.

SKYLINE HEALTHCARE & WELLNESS CENTER, LLC dba SKYLINE  
HEALTHCARE CENTER; ROCKPORT ADMINISTRATIVE SERVICES LLC; MENKEL ENTERPRISES,  
LLC; and DOES 1 through 200, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE

NO.: 25STCV31329

[TENTATIVE] ORDER RE: PLAINTIFF

JAMES SCOTT JR., BY AND THROUGH HIS SUCCESSOR-IN-INTEREST, JUANITA MILES' MOTIONS  
TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE; SPECIAL  
INTERROGATORIES, SET ONE AND REQUESTS FOR PRODUCTION, SET ONE AND REQUEST FOR  
SANCTIONS

Dept. 733

8:30 a.m.

August 26, 2026

I.

INTRODUCTION

This is an elder  
abuse/neglect and wrongful death action.

On October 27,  
2025, Plaintiffs James Scott Jr., by and through his successor-in-interest,  
Juanita Miles ("Scott") and Juanita Miles ("Miles") ("Plaintiffs") filed a  
complaint against Defendants Skyline Healthcare & Wellness Center, LLC dba  
Skyline Healthcare Center ("Skyline"), Rockport Administrative Services LLC

("Rockport") and Menkel Enterprises, LLC ("Menkel") ("Defendants"), alleging causes of action for (1) Elder Abuse/Neglect, (2) Negligence/Willful Conduct, (3) Violation of Residents' Rights, and (4) Wrongful Death.

On April 1, 2026, Scott filed the instant motions to compel initial responses from Rockport I to Form Interrogatories ("FROGs"), Special Interrogatories, set one ("SROGs") and Requests for Production of Documents, set one ("RFPDs") (together, "Discovery Requests").

No opposition was filed.

II.

## LEGAL STANDARD

### 1. Interrogatories

A responding party has 30 days after service of interrogatories to serve their responses on the propounding party. (Code Civ. Proc. § 2030.260(a).) However, if interrogatories are served by electronic service, a responding party has an additional two (2) court days to respond. (Id. § 1010.6(a)(3)(B).)¿

If the responding party fails to timely respond to the interrogatories, "The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)." (Code Civ. Proc. § 2030.290(a).)¿

Furthermore, the party propounding the interrogatories may move for an order compelling response to the interrogatories. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) And "[u]nlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit, and the propounding party does not have to demonstrate either good cause or that it satisfied a 'meet and confer' requirement." (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)¿¿

Failure to

timely respond waives all objections, including privilege and work product, unless “[t]he party has subsequently served a response that is in substantial compliance” and “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2030.290 (a)(1)-(2).)

## 2. Requests for Production

A party must

respond to requests for production of documents within 30 days after service. (Code Civ. Proc. § 2031.260 (a).) The propounding and responding parties may agree to extend the time for response. (Id. § 2031.270(a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Id. § 2031.300 (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Id. § 2031.300 (a).)

There is no time

limit for a motion to compel responses to requests for production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Id. §§ 2024.020 (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Id. § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

The party who

fails to serve a timely response to a demand for inspection waives any objection to the demand unless the court finds that the party has subsequently served a response that is in substantial compliance or party’s failure was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2031.300 (a)(1)-(2).)

III.

## DISCUSSION

Scott moves to

compel Rockport to provide verified responses without objections to his Discovery Requests.

Here, on May 21, 2026, Scott served upon Rockport the Discovery Requests. (Avedian Decl., ¶ 2, Exs.1-2.) Rockport's responses were thus due on or before June 23, 2026.

Scott provides that as of the date of filing the instant motion, Rockport has failed to respond to the Discovery Requests. (Id. ¶ 3.)

Rockport lastly has not filed an opposition.

Given that Rockport has not provided the responses to Scott's Discovery Requests, the instant motions are granted.

#### Sanctions

When a request for monetary sanctions is concurrently filed with a motion to compel responses, “[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code of Civ. Proc., § 2023.030(a).) Additionally, “If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanction unjust.” (Ibid.)¿

The Court finds that Rockport has not provided the Court with substantial justification or the existence of circumstances that make the imposition of sanctions unjust, given that no opposition has been filed. Thus, sanctions are mandatory.

Scott's counsel declares that her hourly rate is \$450.00 and that he spent a total of 3.5 hours on the instant motions and will anticipate spending 2 hours to prepare for an attend the hearing. (Avedian Decl., ¶ 4.) The Court finds this excessive given the simplicity of the issues presented, and thus, decreases the times spent on each motion to one (1) hour and one 0.5 hour preparing for and attending the

hearing. This totals 2.5 hours. Thus, the Court will grant \$1,125.00 total in sanctions, plus \$120.00 for each of the motions' filing fees.

IV.

#### CONCLUSION

Scott's motions to compel initial responses from Rockport to Form Interrogatories, set one, Special Interrogatories, set one and Requests for Production of Documents, set one are GRANTED.

Rockport shall provide verified responses without objections to the above discovery within 30 days of this order.

Scott's accompanying request for sanctions is GRANTED in the total amount of \$1,245.00 against Rockport only. Sanctions are payable within 30 days of this order.

Dated this 26th  
day of August 2026

Hon. Gary  
D. Roberts

Judge  
of the Superior Court